Filing # 89097439 E-Filed 05/07/2019 11:49:20 AM

IN THE CIRCUIT COURT OF THE FIFTH JUDICIAL CIRCUIT
IN AND FOR HERNANDO COUNTY, STATE OF FLORIDA
CIVIL DIVISION

DARLENE PALMER,

Plaintiff, Case No.:

v. Div.:

BLAC INVESTMENTS, INC., d/b/a
TRI COUNTY METALS,

Defendant.
_____/

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COMPLAINT AND DEMAND FOR JURY TRIAL

Plaintiff, DARLENE PALMER, ("Palmer"), by and through her attorneys, sues Defendant, BLAC INVESTMENTS, INC., d/b/a TRI COUNTY METALS, ("TCM") and, in support thereof, Palmer alleges:

1. Palmer brings this action against TCM to remedy civil rights violations in the form of age discrimination, harassment and retaliation in violation of the Florida Civil Rights Act of 1992 ("FCRA").

2. This is an action for equitable relief, including injunctive relief, and damages in excess of $15,000.00, exclusive of interest, court costs, and attorney fees.

3. Palmer is a resident of Hernando County, Florida.

4. TCM is a Florida corporation lawfully conducting business in Hernando County, Florida.

5. The acts complained of herein occurred in Hernando County, Florida.

6. Jurisdiction and venue properly lay in this Court.

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7. On or about August 1, 2018, Palmer was hired by TCM as a Customer Service Representative at their Brooksville, FL facility.

8. At all material times, Palmer was an employee of TCM and was highly qualified for the Customer Service Repressive position.

9. At the time TCM hired her, Palmer was 54 years old.

10. On or about Palmer's first day of work, the facility Manager, Doug Folsom ("Folsom"), directed Palmer to sit at an empty desk in the corner of a room. Folsom further directed Palmer not to answer the phone and not to talk to TCM's customers.

11. Shortly thereafter, Folsom stated that TCM should have hired someone "younger" than Palmer to be the Customer Service Representative.

12. During Palmer's employment, Folsom consistently made derogatory remarks about Palmer's age, inside and outside of her presence.

13. Palmer complained to Dickens about the workplace harassment and discrimination she experienced because of her age. Thereafter, Dickens visited the Brooksville facility to look into Palmer's complaint.

14. Folsom complained about Palmer's age to Dickens and others and stated "why do we have to hire old people." In addition, Folsom stated that Palmer – because of her age – was too stupid to answer the phone and he refused to allow Palmer to do her job.

15. After Palmer's first compliant to Dickens, the workplace harassment and discrimination intensified and became physically threatening. Folsom and a much younger employee, Robert, harassed and criticized Palmer daily because of her age. For example, when Palmer asked work-related questions, either Folsom or Robert, or both, would said that Palmer – because of her age – was a "f***ing idiot" and "too dumb to learn." In addition, Folsom

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physically threatened Palmer by, while standing very close to her, screaming threats and pointing in her face with the intent of forcing her from the workplace because of her age or her complaint of age discrimination, or both.

16. On or about September 11, 2018, Palmer complained to Dickens a second time about the workplace abuse and discrimination she was experienced because of her age. Palmer complained to Dickens that Folsom and Robert told her that they wished TCM had hired someone "younger" than Palmer and called Palmer "f***ing crazy."

17. On September 13, 2018, TCM terminated Palmer's employment. TCM claimed that Palmer's employment was terminated because she was "not progressing"; although, she had never been counselled, reprimanded or disciplined regarding her job performance before her termination.

18. Palmer was terminated because of her complaints of age discrimination and harassment.

19. On or about November 7, 2018, Palmer filed a Charge of Discrimination against TCM with the Florida Commission on Human Relations ("FCHR") within the requisite 365 days.

20. At the time of filing this lawsuit, Palmer waited more than 180 days from the time she filed her Charge of Discrimination for the FCHR to investigate without the FCHR issuing a cause determination.

21. Palmer complied with all applicable conditions precedent and exhausted all administrative prerequisites and remedies prior to filing this lawsuit.

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COUNT I

Hostile Work Environment - Age- in Violation of the FCRA

22. Palmer restates and incorporates herein the allegations in paragraphs one through twenty-one above.

23. TCM was Palmer's "employer" as defined by the FCRA.

24. During her employment with TCM, Palmer experienced workplace discrimination and harassment because of her age which was sufficiently severe or pervasive to alter the conditions of her employment and create a hostile or abusive working environment in violation of the FCRA.

25. Although Palmer complained of the hostile working environment, the workplace abuse continued, intensified and became physically threatening; TCM failed to remedy Palmer's complaints. Palmer's employment was terminated; however, in the alternative, her work environment became so intolerable that no reasonable person would have remained employed forcing her constructive discharge.

26. TCM's illegal employment actions were negligent and, in addition, were done with malice or reckless indifference to Palmer's statutorily protected rights.

27. As a direct result of the hostile work environment complained of herein, Palmer has been deprived of an equal employment opportunity, suffered damage to her reputation and career, mental anguish, emotional pain and suffering, humiliation, loss of enjoyment of life and other non-economic damage and other intangible injuries.

28. As a result of the foregoing illegal actions, Palmer retained the undersigned law firm to which she is obligated to pay reasonable attorney fees, costs and litigation expenses.

29. Pursuant to the FCRA, Palmer is entitled to recover her attorney fees, costs and litigation expenses from TCM if she prevails in this action.

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WHEREFORE, Palmer requests that this Honorable Court enter judgment in her favor and against TCM by:

A. Taking jurisdiction over this action;

B. Declaring that TCM violated the FCRA and that TCM's violations of the FCRA were willful and negligent or were malicious and willful and not in good faith, or both;

C. Awarding Palmer the amount of her back pay and benefits;

D. Reinstating Palmer with full seniority and benefits or, alternatively, awarding Palmer front pay and benefits;

E. Awarding Palmer compensatory damages;

F. Awarding Palmer punitive damages;

G. Awarding Palmer costs and reasonable attorney fees pursuant to § 760.11, Fla. Stat. (2013);

H. Awarding Palmer interest as appropriate; and

I. Awarding Palmer such other relief as it deems just and proper.

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COUNT II

Retaliation in Violation of the FCRA

30. Palmer re-alleges and incorporates herein the allegations contained in paragraphs one through twenty-one above.

31. At all times material to this action, there has been in full force and effect a provision of Florida law, Chapter 760.10 et seq, that prohibits retaliatory employment practices against employees because they have opposed and objected to unlawful employment practices and have complained of such unlawful practices.

32. TCM was Palmer's "employer" as defined by the FCRA.

33. During her employment with TCM, Palmer reasonably complained to TCM about conduct that constituted unlawful age harassment and discrimination which created a sufficiently severe or pervasive work conditions and created a hostile or abusive working environment in violation of the FCRA. As such, Palmer engaged in protected conduct and was protected against unlawful retaliation by TCM under the FCRA.

34. In response to Palmer's complaints, TCM failed to conduct a prompt, thorough and objective investigation of Palmer's complaints of workplace age discrimination and harassment.

35. TCM also failed to take necessary precautions to prevent further recurrences of the discriminatory and harassing conduct complained of by Palmer.

36. Palmer last complained to TCM of unlawful workplace age harassment and discrimination on or about September 11, 2018.

37. On September 13, 2018, TCM terminated Palmer's employment. Alternatively, Palmer's work environment became so intolerable that no reasonable person would have remained employed forcing her constructive discharge.

38. TCM terminated or consecutively forced Palmer's termination because Palmer complained to TCM about unlawful age discrimination and harassment in the workplace and TCM failed to take any action to remedy Palmer's complaints.

39. TCM's actions were negligent and, in addition, were taken with malice or reckless indifference to Palmer's statutorily protected rights.

40. As a result of the unlawful employment practices complained of above, Palmer has been deprived of equal employment opportunity, has suffered economic loss in the past and

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future, suffered damage to her reputation and career, mental anguish, emotional pain and suffering, humiliation, loss of enjoyment of life and other non-economic damage and other intangible injuries.

41. As a result of the foregoing actions, Palmer retained the undersigned law firm to which she is obligated to pay reasonable attorney fees, costs and litigation expenses.

42. Pursuant to the FCRA, Palmer is entitled to recover her attorney fees, costs and other litigation expenses from TCM if she prevails in this action.

WHEREFORE, Palmer requests that this Honorable Court enter judgment in her favor and against TCM by:

A. Taking jurisdiction over this action;

B. Declaring that TCM violated the FCRA and that TCM's violations of the FCRA were willful and negligent or were malicious and willful and not in good faith, or both;

C. Awarding Palmer the amount of her back pay and benefits;

D. Reinstating Palmer with full seniority and benefits or, alternatively, awarding Palmer front pay and benefits;

E. Awarding Palmer compensatory damages;

F. Awarding Palmer punitive damages;

G. Awarding Palmer costs and reasonable attorney fees pursuant to § 760.11, Fla. Stat. (2013);

H. Awarding Palmer interest as appropriate; and

I. Awarding Palmer such other relief as it deems just and proper.

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Demand for Jury Trial

Palmer demands a trial by jury on all issues so triable.

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